

Upendra Pratapsingh Rajput @ Golu vs Smt. Sanju Rajput Wife Of Upendra ... on 21 February, 2023

Author: Dwarka Dhish Bansal

Bench: Dwarka Dhish Bansal

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE DWARKA DHISH BANSAL
ON THE 21 st OF FEBRUARY, 2023
MISC. PETITION No. 4894 of 2022

BETWEEN: -
UPENDRA PRATAPSINGH RAJPUT @ GOLU S/O LATE
ROSHAN SINGH RAJPUT, AGED ABOUT 27 YEARS,
OCCUPATION: AGRICULTURIST VILLAGE DHAKNA
CHAPNA TAHSIL AND DISTRICT RAISEN (MADHYA
PRADESH)

(BY SHRI CHANDRAHAS DUBEY-ADVOCATE)

AND
SMT. SANJU RAJPUT WIFE OF UPENDRA PRATAPSINGH
RAJPUT D/O SHRI KAMAL SINGH RAJPUT, AGED
ABOUT 24 YEARS, VILLAGE NARODA TAHSIL AND
DISTRICT RAISEN (MADHYA PRADESH)

This petition coming on for admission this day, the court
following:

ORDER

This misc. petition has been preferred by the petitioner/husband challenging the order dated 13.10.2022 passed by Principal Judge, Family Court, District Raisen in HMA No.54/2018, whereby learned court below by placing reliance on Rule 2(7)(b) of The Hindu Marriage (Madhya Pradesh) Rules, 1975 and further by placing reliance on the decision of this Court in the case of Jaideep Shah vs. Rashmi Shah @ Miss Rashmi Vyas AIR 2011 MP 216 has directed the petitioner to implead Suryapratap Singh Rajput @ Sonu Rajput s/o Dalsingh Rajput as party to the petition filed under Section 10 of The Hindu Marriage Act for judicial separation.

2. Learned counsel for the petitioner/husband by placing reliance on section 2(7)(e) of Chapter 10 of the M.P. High Court Rules & Orders submits that only in case of divorce petitions, the person, in

respect of whom the allegation of adultery has been levelled, is necessary party and the present petition being in respect of judicial separation under section 10 of The Hindu Marriage Act, the aforesaid preposition is not applicable. He submits that learned court below has erred in directing the petitioner to implead the aforesaid person as party to the petition.

3. Heard learned counsel for the petitioner and perused the record.

4. Section 2(7)(b) of The Hindu Marriage (Madhya Pradesh) Rules, 1975 is reproduced as under :-

"(b) if the petition is for the judicial separation (i) the date and place of the desertion, cruelty, or sexual intercourse which is made the ground for relief and in case of sexual intercourse, the name and address of the person or persons with whom the respondent had sexual intercourse; (ii) the period of leprosy, venereal disease or unsoundness of mind which is made the ground for relief."

5. Further in the case of Jaideep Shah (supra), the coordinate Bench of this Court has held as under:-

"In a petition under section 13(1)(i) of the Hindu Marriage Act, 1955, an allegation of voluntary sexual intercourse by the spouse with a third party is required to be adjudicated. The High Court in exercise of power under sections 14 and 21 of the Hindu Marriage Act, 1955 has framed Rules. Under Rule 2(7)(e)(2) of the Rules, in a petition seeking dissolution of marriage on the ground of adultery, the date and place of the adultery and the name and address of the person with whom the adultery was committed by the respondent is required to be stated. Rule 5 enjoins a duty on the Court to issue notice to the respondent and co-respondent, if any. The aforesaid Rule is in consonance with the principles of natural justice as the finding recorded in the suit would adversely affect the reputation of the concerned person and, therefore, such a person should have an opportunity to defend his reputation before such a finding is recorded. My aforesaid conclusion finds support from a Division Bench decision of Karnataka High Court reported in Arun Kumar Agrawal, supra. So far as the reliance placed by the learned counsel for the respondent No. 2 on the decision of this Court in Neelam Tiwari, supra is concerned, in the said case, the adulterer was not impleaded as a party in the petition for divorce before the trial Court. In appeal, an objection was raised that since the adulterer was not impleaded as co-respondent, therefore, the petition filed under section 13 of the Hindu Marriage Act, 1955 was bad on account of non-joinder of necessary party. In the aforesaid context, the learned Single Judge of this Court held that Rules framed by this Court does not mandatorily require the impleadment of the adulterer. The ratio laid down in the aforesaid case is of no assistance to learned counsel for the respondent No. 2, in the facts and circumstances of the case."

6. In view of the aforesaid Rule 2(7)(b) of The Hindu Marriage (Madhya Pradesh) Rules, 1975 and in view of the decision of coordinate Bench of this court in the case of Jaideep Shah (supra), in my

considered opinion there is no illegality in the impugned order passed by learned court below.

7. Accordingly, the petition fails and is hereby dismissed.

8. Interim application(s), if any, shall stand dismissed.

(DWARKA DHISH BANSAL) JUDGE ss